

26NNCV03889 26NNCV03889

County: los-angeles

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Case Number: 26NNCV03889 Hearing Date: September 18, 2026 Dept: B

Hon. Victor Avila, Dept B

DEMURRER TO COMPLAINT

Hearing Date: 9/18/26

CASE NO.: 26NNCV03889

CASE NAME: Shay

vs. City of Pasadena, et al.

Moving Party: Defendants City of Pasadena and Victor Gordo

Responding Party: Unopposed

Notice: Sufficient

Ruling: SUSTAINED

without leave to amend.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a fraud action. Pro per plaintiff

Allen Shay (Plaintiff) filed this Complaint against defendants City of Pasadena and Victor Gordo (collectively, Defendants) for breach of a promise made by mayoral candidate Victor Gordo on the campaign trail. Defendant Gordo allegedly promised he would “bring justice” to a community member that was shot by police in 2020.

On June 22, 2026, Defendants filed the instant demurrer as to all fifteen causes of action raised in Plaintiff’s complaint. As of September 15, 2026, no opposition has been filed.

LEGAL

STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been

drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of Exhibits: (1) Policy 300 of the Pasadena Police Department's Policy Manual; (2) Chapter 2.303 of the Pasadena Municipal Code; (3) Notice of a Joint Special Meeting of the Public Safety Committee and City Council on May 15, 2023; (4) Minutes of the Joint Special Meeting of the Public Safety Committee and City Council on May 15, 2023; (5) Agenda of a Public Safety Committee Regular Meeting on July 16, 2025; (6) Minutes of a Public Safety Committee Regular Meeting on July 16, 2025; and (7) *Diondra Williams et al. v. Dumaguindin et al.*, Case No. 2:20-cv09042-VAP-AS. The request as to Exhibits 1 and 2 is granted. (Evid. Code, §452(b).) The request as to Exhibits 3-6 is granted. (Evid. Code, §452(c).) The request as to Exhibit 7 is granted. (Evid. Code, §452(d).)

DISCUSSION

Meet and Confer

Code of Civil Procedure section 430.41

requires that before the filing of a demurrer the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be

reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41(a).) The parties are to meet and confer at least

five days before the date the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc. § 430.41(a)(3).)

Defendants' counsel declares that on June 17, 2025, they placed a phone call to pro per Plaintiff for the purpose of meeting and conferring regarding the demurrer and Plaintiff expressed disagreement requesting an email outlining the demurrer. (Aaronian Decl., ¶ 3.) Further, Defendants' counsel declares that on June 19, 2026, they sent an email outlining the grounds for demurrer and the parties have since been unable to resolve the dispute. (Aaronian Decl., ¶ 4.) Plaintiff does not dispute or address meet and confer efforts since there is no opposition.

Based on declaration of Defendants' counsel, the parties have complied with meet and confer requirements.

Demurrer

Defendants demur

to all fifteen causes of action on the grounds that each cause of action fails to state sufficient facts. (Mot., p. 2.) Further, Defendants argue that all causes of action are barred by statute of limitations and various governmental immunities. (Mot., p. 11.)

Statute of Limitations

"[No]

suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with [section 911.2] until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board". (Gov. Code, § 945.4.)

Pursuant

to section 911.2(a), a claim relating to a cause of action for death or for injury to person or to personal property ...shall be presented not later than six months after the accrual of the cause of action. A claim relating to any other

cause of action shall be presented no later than one year after the accrual of the cause of action. (Gov. Code, § 911.2(a).)

Pursuant

to section 950.2, a cause of action against a public employee or former public employee for injury resulting from an act or omission in the scope of his employment as a public employee is barred if an action against the employing public entity is barred. (Gov. Code, § 950.2.)

Defendants argue that a cause of

action accrue for purposes of claim presentation on the same date a similar cause of action against a non-public entity would be deemed to accrue, accordingly a claim against a public entity accrues when it is complete with all of its elements. (Mot., p. 15.) Therefore, Defendants argue that all causes of action accrued in 2020, when Plaintiff alleges Defendants breached their promise by not ensuring “justice”. (Ibid.) Defendants argue that if Plaintiff alleges the promise was made in October 2020, and breached in November 2020, the claim accrued at that moment. (Mot., pp. 15-16.) Defendants argue that Plaintiff’s presentation of the claim on January 12, 2026, was therefore untimely. (Mot., p. 16.) Further, Defendants argue that Plaintiff’s invocation of the discovery rule is meritless. (Ibid.) Plaintiff contends that they did not discover these claims until July 2025, when the City Attorney’s Office conducted a presentation on how AB 392 should be applied. (Ibid.) However, Defendants argue this is a meritless argument because Plaintiff asserted AB 392 was applied incorrectly in November of 2020 and ignorance of the law does not delay claims. (Mot., pp. 16-17.)

Pursuant

to Government Code sections 911.2 and 945.4, Plaintiff had until November 2021 to present these claims and did not do so until January 12, 2026. (Comp., ¶ 18, 33.) Plaintiff’s latent discovery approach is inapplicable here because the basis of Plaintiff’s claim is the allegation that Defendants failed to fulfill their promise to “bring justice to Mr. McClain” and terminate the officers involved. (Comp., ¶ 18.) Plaintiff’s causes of action are all based on reliance on this promise and Defendants’ alleged failure to fulfill this promise which Plaintiff was aware of in November 2020. (Ibid.) The basis of Plaintiff’s claims is not the responsibility of the officers involved in the incident under AB 392, which Plaintiff states was addressed in a separate civil matter. (Comp., ¶ 21.) Thus, all fifteen of Plaintiff’s causes of action are time barred. Since the time to present this complaint

pursuant to Government Code section 911.2 has long passed, the Court finds amendment will not cure the deficiencies. The Court will not address subsequent arguments made by Defendants regarding each cause of action's failure to state a claim because Plaintiff cannot circumvent the time bar.

Accordingly,
Defendants' demurrer is SUSTAINED without leave to amend.

CONCLUSION
AND ORDER

Defendants City
of Pasadena and Victor Gordo's demurrer as to all fifteen causes of action in the Complaint are SUSTAINED without leave to amend.

MOVING PARTY shall provide notice and
provide a proposed order consistent with this ruling within 10 days from this date.